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California Legislature passes bill mandating state investigations of ICE shootings

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SACRAMENTO, Calif. — A bill mandating independent state investigations of shootings by federal immigration enforcement agents landed on Gov. Gavin Newsom's desk Wednesday after passing an Assembly floor vote.

Assembly Bill 1806 responds to a recent uptick in civilian injuries and deaths at the hands of Immigration and Customs Enforcement agents, according to bill author Assemblymember Jesse Gabriel, D-Encino. According to reporting by The New York Times, at least 23 people have been shot at by ICE agents since early 2025.

The Assembly voted to pass the bill by a 42-13 vote along party lines.

The bill's passage comes on the heels of two ICE-involved shootings in California: Keith Porter Jr., who was killed Dec. 31 by an off-duty ICE agent, and Carlos Ivan Mendoza Hernandez, who was shot seven times in the face by an ICE agent April 7.

"This bill is a direct result of the relentless ICE assaults that we saw earlier this year...around the state and around the country," Gabriel said before the final Assembly vote. "As we watched these horrific scenes unfold, where American citizens were shot and killed by federal agents here in the United States of America — something just unthinkable — we believed there had to be transparency and accountability around that."

Prosecutors have yet to decide whether to pursue charges against Brian Palacios, the ICE officer who shot and killed Porter. Mendoza Hernandez, who hit an ICE vehicle while attempting to flee agents, awaits an Oct. 19 hearing on charges of destruction of federal property and assaulting a federal officer.

"When circumstances are highly disputed and questions persist, an independent investigation is not just warranted, it is necessary," Sen. Caroline Menjivar, D-San Fernando Valley, said in a Tuesday presentation on the Senate floor. "In these circumstances, the state has both a moral and legal obligation to protect its residents and uphold the rule of law."

The measure passed the Senate by a 30-9 vote along party lines. Opponents have raised concerns that the bill would authorize an overreach of state power, as it would permit the state prosecutor to conduct investigations into federal ICE agents.

"This is unnecessary," Sen. Tony Strickland, R-Huntington Beach, said on the Senate floor Tuesday. "The federal government already reviews incidents involving officers, and the state can already investigate crimes committed within its jurisdiction."

However, the bill's supporters maintain that increased transparency is necessary to protect against further acts of violence committed by federal law enforcement officers.

"We currently live in a climate where we can't rely on the federal government to conduct their own investigation into shootings," said Shiu-Ming Cheer, the deputy director of immigrant and racial justice at the California Immigrant Policy Center, in an interview with The Sacramento Bee. "We want to make sure there is an investigation and California state officials are able to look at the evidence and decide whether they want to pursue any further steps. This is one way of ensuring that there's some accountability."

The California Immigrant Policy Center is a co-sponsor of the bill alongside the Center for Human Rights and Constitutional Law, the Latino Community Foundation and Service Employees International Union California, among

others.

According to Gabriel, consultations with constitutional experts regarding the bill's language led to a number of amendments that put the legislation on "firm constitutional ground."

"The way the bill is currently written aligns exactly with the way that we respond to officer-involved shootings here in California that result in the death of an unarmed civilian," Gabriel said. "If a peace officer here in the state of California kills an unarmed civilian, then the (attorney general) does an independent investigation. We think that that should happen irrespective of the facts and circumstances."

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